

Smt. Bhauneesh Singh Gaur v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 April 2015 · Writ-C No. 22737 of 2014 · **Writ disposed; heirs directed to apply under 4.44 and 6.5**

HEADNOTE

Heirs of a deceased unmetered consumer, who had paid a one-time settlement and later faced unmetered bills, disconnection and delayed metering, were directed to seek mutation under clause 4.44 and bill revision under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of without revising the bills on merits.

FACTUAL SUMMARY

Smt. Bhauneesh Singh Gaur used electricity without a meter. On 8 April 2010 she applied for One Time Settlement and deposited Rs 20,024. A subsequent bill of Rs 13,273 for March–May 2010 was objected as arbitrary, and she sought a meter. Supply was disconnected on 1 October 2012 for non-payment, restored after depositing Rs 10,000, and a meter was installed on 8 December 2012. She sought revision of bills from 2010 until metering. She died during the writ and her heirs were substituted.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation of connection after consumer's death

HOLDING

Where the recorded consumer has died and heirs have been substituted in the writ, they must apply for mutation of the connection under clause 4.44; the competent authority is to decide that application within four weeks. ¶ 1

HOLDING-UNIT · UP-2005::6.5

revision of unmetered electricity bills

HOLDING

A dispute over revision of electricity bills raised while supply was unmetered is to be decided on an application under clause 6.5 by a reasoned and speaking order within four weeks; the writ court does not revise the bills itself. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Heirs of a deceased unmetered consumer, who had paid a one-time settlement and later faced unmetered bills, disconnection and delayed metering, were directed to seek mutation under clause 4.44 and bill revision under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

connection-transfer-requires-clearance-of-arrears-clause-4.44 Heirs of a deceased unmetered consumer, who had paid a one-time settlement and later faced unmetered bills, disconnection and delayed metering, were directed to seek mutation under clause 4.44 and bill revision under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS FROM 2010 TO 8 DECEMBER 2012 MUST BE REVISED

Left to the competent authority on a clause 6.5 application ¶ 1

NOT DECIDED — MUTATION OF THE DECEASED CONSUMER'S HEIRS ON THE CONNECTION

Left to the competent authority on a clause 4.44 application ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.